Statement of Work No. 1 – Facilities and HVAC Services at Seabright Harbour Hotel

Project	Planned maintenance and chiller replacement services at Seabright Harbour Hotel
Parent Agreement	Master Services Agreement dated 28 October 2025 between the Customer and the Supplier (the "**MSA**")
Customer	Seabright Hotels & Resorts Ltd
Supplier	Northgate Facilities & HVAC Inc
Effective Date	07 November 2025
Period	From the Effective Date until 07 November 2027 (24 months) (the "**Initial Term**")
Annual Fees	USD 540,000
Total Contract Value	USD 1,080,000

This Statement of Work No. 1 (this "**SOW**") is entered into between **Seabright Hotels & Resorts Ltd** (the "**Customer**"), a hotel group that owns and operates six hotels, and **Northgate Facilities & HVAC Inc** (the "**Supplier**"). It is issued under, and forms part of, the MSA. Services under this SOW are delivered at the Customer's hotel known as **Seabright Harbour Hotel** (the "**Property**").

1. Background

1.1 The Customer owns and operates a group of six hotels (each a "**Property**" under the MSA). The Customer requires facilities and heating, ventilation and air-conditioning services at Seabright Harbour Hotel.

1.2 The Supplier is engaged in the provision of facilities maintenance and HVAC services and has agreed to provide the Services at the Property on the terms of this SOW and the MSA.

1.3 Capitalised terms not defined in this SOW have the meanings given in the MSA. If this SOW conflicts with the MSA, the MSA prevails unless this SOW expressly states that it overrides a specific provision of the MSA.

2. Scope of Services

2.1 The Supplier shall provide the following services at the Property (the "**Services**"):

(a) development of a planned-maintenance schedule covering the Property's HVAC plant, building-services equipment and associated systems;

(b) performance of planned and reactive maintenance in accordance with the agreed schedule;

(c) supply and installation of a replacement chiller for the Property, including removal and lawful disposal of the existing unit, commissioning and testing; and

(d) preparation and maintenance of service records, equipment logs and completion reports.

2.2 The Supplier shall perform the Services with reasonable skill and care, in accordance with good industry practice, applicable law, manufacturer requirements and the Customer's site, safety and security rules as notified to the Supplier.

2.3 The Supplier shall schedule works so as to minimise disruption to guests and hotel operations, and shall carry out noisy, disruptive or access-restricted works only at times agreed in advance with the Customer's Property representative.

2.4 Services outside this scope require a written change request signed by both parties. Neither party is bound by a change until so signed.

3. Deliverables and Milestones

No.	Deliverable / Milestone	Due Date	Acceptance Criteria
Milestone 1	Planned-maintenance schedule agreed	27 November 2025	Schedule approved in writing by the Customer's Property representative
Milestone 2	Chiller replacement complete	22 December 2026	Chiller installed, commissioned and tested; completion report delivered and accepted under Section 8

3.1 The Supplier shall use reasonable endeavours to meet each due date. If the Supplier anticipates a delay, it shall promptly notify the Customer, stating the cause and a recovery plan.

3.2 A due date shall be extended to the extent a delay is caused by the Customer's failure to perform its responsibilities under this SOW, provided the Supplier gives prompt written notice of that failure.

4. Roles and Responsibilities

4.1 **Supplier.** The Supplier shall: (a) provide suitably qualified, licensed and supervised personnel; (b) appoint a project manager as the primary contact; (c) comply with the Customer's safety, security and conduct requirements while on site; (d) maintain the insurance required by the MSA; and (e) report progress at the intervals reasonably requested by the Customer.

4.2 **Customer.** The Customer shall: (a) provide timely access to the Property, plant rooms and relevant areas; (b) appoint a Property representative with authority to make day-to-day

decisions; (c) provide information reasonably required to perform the Services; and (d) give timely approvals and feedback.

4.3 Each party's representative may be changed by written notice to the other.

5. Assumptions

5.1 The parties have agreed the Fees on the following assumptions:

(a) the Supplier will have reasonable access to the Property and its plant during agreed working hours;

(b) existing plant, pipework, structural supports and electrical supply at the Property are suitable for the replacement chiller, except for defects not reasonably discoverable by inspection before the Effective Date;

(c) the Customer will respond to approval requests within a reasonable time; and

(d) no change to applicable law or manufacturer requirements occurs that materially alters the Services.

5.2 If an assumption proves incorrect and affects cost or timing, the parties shall discuss in good faith an appropriate adjustment, which takes effect only through a signed change request under Section 2.4.

6. Fees and Invoicing

6.1 The Customer shall pay the Supplier annual fees of USD 540,000 for each year of the Initial Term, giving a total contract value of USD 1,080,000 for the Initial Term (the "**Fees**"). The Fees are the entire charge for the Services unless a change request provides otherwise.

6.2 The Supplier shall invoice the Fees in the instalments and at the intervals agreed between the parties' representatives and recorded in writing. Each invoice shall be valid only if it identifies this SOW, the Property and the Services covered, and otherwise complies with the MSA.

6.3 The Customer shall pay each undisputed invoice within 45 days of receipt of a valid invoice. The Customer shall notify the Supplier promptly of any disputed amount and the reasons, and the parties shall work in good faith to resolve it. The Customer may withhold only the disputed portion.

6.4 Taxes shall be dealt with as provided in the MSA.

7. Term, Renewal and Termination

7.1 This SOW commences on 07 November 2025 and, unless terminated earlier, continues until 07 November 2027.

7.2 This SOW does not renew automatically. Any extension requires a written agreement signed by both parties.

7.3 Either party may terminate this SOW for the other's material breach that remains unremedied after written notice and a reasonable opportunity to cure, or on the other termination grounds set out in the MSA. On termination or expiry the Supplier shall deliver all records and completion reports, return Customer property, and be paid for Services properly performed and accepted up to the termination date, subject to the MSA.

8. Acceptance

8.1 On completing a Milestone, the Supplier shall notify the Customer in writing and provide supporting documentation, including, for Milestone 2, commissioning and test results.

8.2 The Customer shall review each Milestone promptly and either accept it in writing or give written notice of material non-conformity with the acceptance criteria in Section 3, with reasons.

8.3 The Supplier shall correct any notified non-conformity at its own cost and resubmit the Milestone, and the process in this Section 8 shall repeat. Acceptance does not waive any warranty or right under the MSA relating to latent defects.

9. Warranties

9.1 The Supplier warrants that the Services will be performed with reasonable skill and care by suitably qualified personnel, and that all equipment supplied will be new, fit for its purpose, free from defects in materials and workmanship, and supplied with the manufacturer's warranties, which the Supplier shall assign or pass through to the Customer.

9.2 The Supplier shall promptly re-perform or remedy any non-conforming Services at its own cost, without prejudice to the Customer's other rights under the MSA.

10. Confidentiality

Each party shall keep confidential all non-public information of the other received in connection with this SOW, including guest, security, layout and pricing information, use it only to perform or receive the Services, and disclose it only as permitted by the confidentiality provisions of the MSA, which apply to this SOW.

11. Intellectual Property

11.1 Each party retains its pre-existing intellectual property. The Supplier grants the Customer a non-exclusive, perpetual licence to use the Supplier's pre-existing materials incorporated in the deliverables to the extent necessary to use and maintain the Property's plant.

11.2 Ownership of schedules, records, logs and reports prepared specifically for the Customer under this SOW is as provided in the MSA.

12. Data Protection

Each party shall comply with applicable data protection law. The Supplier shall process any personal data of guests, staff or others encountered at the Property only as needed to perform

the Services and in accordance with the data protection provisions of the MSA, and shall notify the Customer without undue delay on becoming aware of any unauthorised access to such data.

13. Liability and Indemnity

13.1 Each party's liability under or in connection with this SOW is governed by the liability provisions of the MSA.

13.2 Indemnities under this SOW are those set out in the MSA, which apply to the Services as if set out in full here, including in respect of personal injury, property damage and third-party claims arising from the Supplier's acts or omissions at the Property.

14. General

14.1 **Assignment.** Neither party may assign or subcontract its rights or obligations under this SOW without the other's prior written consent, not to be unreasonably withheld, except as the MSA permits.

14.2 **Notices.** Notices under this SOW shall be in writing and given in the manner and to the addresses specified in the MSA.

14.3 **Entire Agreement.** This SOW and the MSA constitute the entire agreement between the parties on its subject matter and supersede all prior discussions and understandings. Amendments must be in writing and signed by both parties.

14.4 **Governing Law.** This SOW and any dispute arising from it are governed by the laws of Illinois, and disputes shall be resolved in accordance with the dispute resolution provisions of the MSA.

14.5 **Counterparts.** This SOW may be executed in counterparts, including by electronic signature, each of which is an original.

15. Signatures

Signed for and on behalf of Seabright Hotels & Resorts Ltd

Signature: _____

Name: Michael Brennan

Title: Chief Procurement Officer

Date: 28 October 2025

Signed for and on behalf of Northgate Facilities & HVAC Inc

Signature: _____

Name: Richard Hale

Title: Authorised Signatory

Date: 31 October 2025